

INFORMATION PACKET
Application to Seal / Expunge Criminal Record
(R.C. 2953.32, et seq.)

Neither the Clerk of Court's Office, Judicial Staff, nor Adult Probation Department staff can tell you if you are eligible to have your conviction(s) sealed or expunged or offer you any legal advice.

SEALING YOUR RECORD VS. EXPUNGING YOUR RECORD:

Effective April 6, 2023, Ohio permits for both the sealing and expungement of certain criminal records. "Sealing" a court record means that the criminal record is removed from all public records and the public no longer has access to the records of the criminal case, including employers generally. "Expungement" usually means that the criminal record is completely destroyed, erased, or obliterated from all records. For a list of who can still access a sealed or expunged record, please see section 2953.34 of the Ohio Revised Code or contact an attorney.

GUIDELINES FOR SEALING A CRIMINAL RECORD:

Only certain convictions are eligible to be sealed once a prescribed period of time has passed since your final discharge. "Final discharge" means you have fully completed any jail or prison sentence, any terms of probation or parole, and have paid all fines, fees, and/or restitution that were a penalty for the conviction. To be eligible, your convictions must fall into one of the following categories:

Minor Misdemeanors Only:

You may be eligible to seal your record of conviction at the expiration of six (6) months after final discharge if convicted of a minor misdemeanor.

Lower-Level Felonies and Misdemeanors:

You may be eligible to seal your record of conviction at the expiration of one (1) year after final discharge if convicted of one or more felonies of the 4th or 5th degree or one or more misdemeanors, so long as none of the offenses are a felony offense of violence.

Third Degree Felonies:

You may be eligible to seal your record of conviction at the expiration of three (3) years after final discharge if convicted of one or two felonies of the 3rd degree if you are not otherwise ineligible due to criminal history. (See list of convictions not eligible to be sealed below).

If Applicant is Subject to Chapter 2950 (Sex Offender Registry):

You may be eligible to seal your record of conviction at the expiration of five (5) years after registration requirements have ended if the underlying conviction is of an eligible offense. (See list of convictions not eligible to be sealed below).

Soliciting Improper Compensation:

You may be eligible to seal your record of conviction at the expiration of seven (7) years after final discharge if convicted of soliciting improper compensation in violation of R.C. 2921.43.

GUIDELINES FOR EXPUNGING A CRIMINAL RECORD:

An application for expungement under R.C. 2953.32(B)(1)(b) may be made at whichever of the following times is applicable regarding the applicant's conviction(s):

Minor Misdemeanors Only:

You may be eligible to expunge your record of conviction at the expiration of six (6) months after final discharge if convicted of a minor misdemeanor.

Misdemeanors:

You may be eligible to expunge your record of conviction at the expiration of one (1) year after final discharge if the offense is a misdemeanor.

Fourth- and Fifth-Degree Felonies:

You may be eligible to expunge your record of conviction at the expiration of eleven (11) years after final discharge.

Third Degree Felonies:

You may be eligible to expunge your record of conviction at the expiration of thirteen (13) years after final discharge.

THE FOLLOWING TYPES OF CONVICTIONS ARE NOT ELIGIBLE TO BE SEALED OR EXPUNGED:

1. Convictions of felonies of the 1st or 2nd degree;
2. Convictions of a felony of the 3rd degree if the applicant has more than one other conviction of any felony, or, if the applicant has exactly two 3rd degree felony convictions, has more convictions in total than those two 3rd degree felony convictions and two misdemeanor convictions;
3. Convictions of a felony offense of violence that is not a sexually oriented offense;
4. Convictions of a sexually oriented offense while the offender is subject to the requirements of Chapter 2950 of the Ohio Revised Code;
5. Convictions of an offense in a circumstance in which the victim of the offense was less than 13 years old, except convictions under R.C. 2919.21 (nonsupport of dependents);
6. Convictions of domestic violence under R.C. 2919.25;
7. Convictions of violating a protection order under R.C. 2919.27;
8. Convictions under Revised Code Chapters 4506 (CDLs), 4507 (Driver's License Laws), 4510 (License Suspension/Cancellation/Revocation), 4511 (Traffic Laws, such as OVI), or 4549 (Motor Vehicle Crimes such as Fictitious Plates) or substantially similar municipal ordinances.

PAYMENT OF FINES / RESTITUTION

To be eligible to have your record sealed or expunged, you must have paid any and all fines, fees, and/or restitution before you are considered eligible to have your record sealed. To find out whether you own any fines, fees, or restitution, you may request a cost bill from the Greene County Clerk of Court's Office.

COST OF APPLICATION:

Unless the applicant submits an affidavit of indigency and the fee is waived by the Court, an applicant shall pay to the Greene County Clerk of Court a nonrefundable sum of \$50.00, regardless of the number of records the applicant requests to be sealed or expunged.

HOW TO APPLY:

To apply for your record(s) to be sealed or expunged under Section 2953.31, et seq. of the Revised Code, fill out the application to the best of your ability and bring the original to the Greene County Court of Common Pleas at 45 North Detroit Street, Xenia, Ohio 45385. Be sure to make a copy for your records.

Take the completed application to the Clerk of Court's office and pay a nonrefundable application fee of \$50.00 or submit an affidavit of indigency. Your application will be scheduled for a hearing and you will receive a notice containing your hearing date and hearing method (either in-person or via Zoom videoconference) in the mail or via email.

WHAT HAPPENS AT THE HEARING:

In compliance with section 2953.32 of the Ohio Revised Code, upon application, the Court will set a date for a hearing within 45 to 90 days from the date you filed your application. The Court will notify the prosecutor for the case of the hearing and the prosecutor's office will notify the victim (if any) of the application.

The Court must then do all of the following:

1. Determine whether the applicant is pursuing sealing or expunging of an offense that is not eligible under R.C. 2953.32(A) or whether the forfeiture of bail was agreed to by the applicant and the prosecutor in the case, and determine whether the application was made at the time specified in R.C. 2953.32(B);
2. Determine whether criminal proceedings are pending against the applicant;
3. Determine whether the applicant has been rehabilitated to the satisfaction of the court;
4. Consider the reasons (if any) presented by the prosecution against granting the application to seal/expunge the record as specified by the prosecutor in their objection;
5. Consider the reasons (if any) presented by the victim against granting the application to seal/expunge the record as specified by the victim in his/her objection;
6. Weigh the interests of the applicant in having the records pertaining to the applicant's conviction or bail forfeiture sealed or expunged against the legitimate needs, if any, of the government to maintain those records; and
7. Consider the oral or written statements of any victim, victim's representative, and victim's attorney, if applicable.

Record Sealing and Expungement in Ohio

A guide for adult convictions - **UPDATED: March 2025**



STEP 1: WHAT OFFENSES CANNOT BE SEALED OR EXPUNGED?

Ohio Revised Code (R.C.) 2953.32 and 2953.34 do not apply to any of the following:

- 1st or 2nd degree felonies
- A 3rd degree felony if applicant has (2) or more felonies of any degree
- A 3rd degree felony if applicant has exactly (2) 3rd degree felonies + (2) misdemeanors + any other conviction
- Traffic convictions
- Theft in Office convictions
- Felony offenses of violence that are not sexually oriented offenses
- Sexually oriented offenses when the applicant is subject to the requirements of Chapter 2950 of R.C. (sex offender registry)
- Offenses in which the victim was less than 13 years old (**Note: does not apply to nonsupport of dependents.**)
- Domestic Violence convictions (**Note: 3rd/4th degree misdemeanor sealing allowed.**)
- Violating Protection Order convictions (**Note: sealing allowed.**)

Sexually Oriented Offenses (per R.C. 2950.01)

2905.02(B)	Abduction	2907.321	Pandering obscenity involving a minor or impaired person
2903.01	Aggravated murder*	2907.322	Pandering sexually oriented matter involving a minor or impaired person
2907.21	Compelling prostitution	2907.22	Promoting prostitution
2905.05(B)	Criminal child enticement	2907.09	Public indecency*
2919.22(B)(5)	Endangering children	2907.02	Rape
2903.11	Felonious assault*	2907.03	Sexual battery
2903.06	Gross sexual imposition	2907.06	Sexual imposition
2903.06	Illegal use of minor in nudity-oriented material or performance	2905.32	Trafficking in persons*
2903.06	Importuning	2905.03(B)	Unlawful restraint
2903.06	Involuntary manslaughter*	2907.04	Unlawful sexual conduct with minor*
2903.06	Kidnapping*	2903.03(B)	Voluntary manslaughter
2903.06	(3) Menacing by stalking	2907.08	Voyeurism
2903.06	Murder*		
2903.06	Pandering obscenity		

*Check R.C. 2950.01 for extended definition.

Offenses of Violence (per R.C. 2901.01)

2905.01	Abduction
2909.02	Aggravated arson
2903.12	Aggravated assault
2911.11	Aggravated burglary
2903.21	Aggravated menacing
2903.01	Aggravated murder
2917.02	Aggravated riot
2911.01	Aggravated robbery
2909.03	Arson
2903.13	Assault
2911.12 (A)(1), (2), or (3)	Burglary
2919.25	Domestic violence
2919.22(B)(1), (2), (3), or (4)	Endangering children
2921.34	Escape
2905.11	Extortion
2903.11	Felonious assault
2907.12	(former) Felonious sexual penetration
2907.05	Gross sexual imposition
2923.161	Improperly discharging firearm
2917.01	Inciting to violence
2917.31	Inducing panic
2921.03	Intimidation
2921.04	Intimidation of attorney, victim, or witness
2903.04	Involuntary Manslaughter
2905.01	Kidnapping
2903.22	Menacing
2903.211	Menacing by stalking
2903.02	Murder
2903.34(A)(1)	Patent Abuse or Neglect
2903.15	Permitting child abuse
2907.02	Rape
2917.03	Riot
2911.02	Robbery
2907.03	Sexual battery
2903.18	Strangulation or suffocation
2917.321	Swatting
2909.24	Terrorism
2905.32	Trafficking in Persons
2903.03	Voluntary Manslaughter

STEP 2: HAVE YOU SATISFIED THE WAITING PERIOD?

SEALING WAITING PERIODS:

- Wait six months after discharge.
- Wait one year after the misdemeanor* is discharged.
- Wait one year after the fourth or fifth degree felony* is discharged.
- Wait three years after the third degree felony* is discharged.
- Wait five years after requirements have ended.

as none of the offenses is a violation of R.C. 2921.43. If the record includes a violation of R.C. 2921.43, applicant must wait seven years.

EXPUNGEMENT WAITING PERIODS:

- Wait six months after discharge.
- Wait one year after the misdemeanor is discharged.
- Wait eleven years after fourth or fifth degree felony is discharged.
- Wait thirteen years after the third degree felony is discharged.

A case is "discharged" when a person has fully completed any jail or prison sentence, any terms of probation or parole, and all payments of fines or fees that were a penalty for the conviction. Court costs are not part of a sentence, and unpaid court costs should not block an application.

STEP 3: WHEN CAN A PERSON APPLY?

Are there pending criminal charges? The court will not seal or expunge any record if the applicant is facing pending charges. Applicants should wait until any pending cases have resolved. Depending on where in Ohio their records are, that could include completing requirements like probation.

Is the applicant unlikely to re-offend? Applicants must be able to show that they have been “rehabilitated to the satisfaction of the court.” Applicants must also show that their interest in sealing a record is greater than any legitimate government needs to maintain those records.

STEP 4: HOW DOES A PERSON APPLY?

For each offense, complete an application in each court where there is a case to be sealed or expunged.

Every court has its own application forms and processes, so contact the Clerk of Courts to find out what documents to file and how to file them. The Clerk of Courts can usually disclose a person's case number, name and degree of the offense, date of conviction, and date of case discharge.

The filing fee will be \$50. A person can ask the court to waive this fee by completing a poverty affidavit (sometimes called an “affidavit of indigence”). If a hearing is scheduled, the applicant must attend.

NOTE: DIFFERENCE BETWEEN “SEALING” & “EXPUNGEMENT”

“Sealing” and “expungement” are words that certain places sometimes use interchangeably, but they have different legal effects. A granted expungement deletes and destroys a record and treats it as if it never occurred—sealing does not do this. Sealed records are removed from most public access, which is helpful for many employment and housing opportunities. If you were granted an expungement prior to 2023, you were likely granted a sealing, not true expungement.

NOTE: CONVICTION CLUMPING PROVISION

For purposes of determining third-degree felony eligibility, conviction clumping may be possible. When two or more convictions result from or are connected with the same act or result from offenses committed at the same time, they shall be counted as one conviction. When two or three convictions result from the same indictment/complaint, plea of guilty, or the same official proceeding, and result from related criminal acts that were committed within a three-month period but do not result from the same act or from offenses committed at the same time, they shall be counted as one conviction, **unless a court decides that it is not in the public interest** for the convictions to be counted as one conviction.

Document updated: March 2025

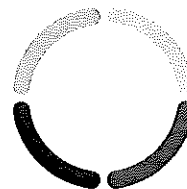
If you have questions about eligibility or want to learn about how to overcome barriers of a criminal conviction, register for OJC's Second Chance Legal Clinic at www.ohiojpc.org.

Disclaimer: This guide is a general source of information about criminal record sealing. It is not a substitute for individualized legal advice. For answers to specific questions, it is best to consult an attorney.

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**OHIO JUSTICE &
POLICY CENTER**

IN THE COMMON PLEAS COURT OF GREENE COUNTY, OHIO
GENERAL DIVISION (CRIMINAL)

STATE OF OHIO,

CASE NO. _____

Plaintiff,

JUDGE _____

v.

Defendant.

In Re: CRIMINAL RECORD APPLICATION FOR ☐ SEALING ☐ EXPUNGEMENT
(check only one)

Full name:		Alias/Maiden Name/Name Changes (Since age of 18):	
Address:		If moving before hearing date, please note new address:	
City:	State:	Zip:	
Date of Birth:	Social Security #:	Phone #:	
Email address:		Reasons for requesting this sealing/expungement: ☐ employment ☐ housing ☐ education ☐ other _____	

Case Number	Result	Date of Result	Charge(s)
	☐ Conviction ☐ Not guilty/dismissal ☐ Bail forfeiture		

I, the undersigned, acknowledge that the above information is true and correct to the best of my ability and that I have no criminal proceedings pending against me. I further certify that all applicable sealing or expungement requirements under R.C. Chapter 2953 are met.

Signature of Applicant

Date